

Bullying, Harassment & Discrimination

Definitions · Types · Mental Health · Bystander Effect · Reporting · Pakistan Law



What We Will Cover in This Module

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Definitions	Types	Mental Health	Bystander Effect	Reporting	Pakistan Law
Bullying vs. harassment vs. discrimination — what makes each distinct, and where they legally overlap	Physical, verbal, cyber, and campus/workplace-specific forms — with Pakistani campus examples	Immediate psychological effects and serious documented long-term consequences for survivors	Why witnesses stay silent — Darley & Latané research, 6 reasons, the 5D intervention toolkit	FAST NUCES Peshawar steps, general channels, self-protection strategies, emergency contacts	PHWA 2010, PECA 2016, PPC sections, HEC policy, Constitution Articles 25–28, FOSPAH

Definitions: Bullying, Harassment & Discrimination

One act can fall into all three categories at once. Knowing the precise definition determines which law applies, which institution is responsible, and which remedies are available to you.

BULLYING

Repeated, intentional harmful behaviour where the perpetrator has more power than the target.

3 Key Elements:

- REPETITION — a one-off conflict is not bullying; it must be a pattern over time
- INTENT — the perpetrator is aware their actions cause harm and continues anyway
- POWER IMBALANCE — physical size, social status, seniority, group pressure, or digital reach

Campus example: A senior repeatedly mocks and excludes a junior in front of peers across several weeks.

HARASSMENT

Unwanted conduct that violates dignity or creates an intimidating, hostile, or offensive environment.

3 Key Elements:

- CAN BE SINGLE INCIDENT — one severe act suffices; repetition not required
- IMPACT NOT INTENT — victim's experience determines whether it qualifies
- OFTEN LINKED to protected characteristics: gender, religion, ethnicity, disability

Campus example: Sending unwanted messages with sexual content to a colleague — even once if severe enough.

DISCRIMINATION

Treating a person unfairly because of a protected characteristic in education, employment, or services.

3 Key Elements:

- DIRECT — overtly worse treatment based on identity (e.g., denying admission by sect)
- INDIRECT — a neutral policy that disproportionately disadvantages a group
- SYSTEMIC — embedded in institutional structures, policies, and cultural norms

Campus example: Denying a student a society leadership role because of their religion or socioeconomic background.

Key distinction: Bullying requires repetition + power imbalance. Harassment can be a single severe act. Discrimination is always linked to a protected characteristic (gender, religion, ethnicity, disability, socioeconomic status). One act can simultaneously meet all three definitions.

Types of Bullying & Harassment: Physical and Verbal

These are forms of BULLYING when repeated with a power imbalance, and HARASSMENT when any single act violates dignity. The same behaviour can qualify as both. Neither requires physical contact — a credible threat is sufficient.

Physical [Bullying & Harassment]

Intentional bodily contact, property damage, or spatial intimidation designed to hurt, frighten, or control.

Direct contact: Hitting, kicking, shoving, slapping, spitting, or unwanted sexual touching

Property: Stealing, hiding, or deliberately damaging personal belongings

Spatial control: Blocking exits, physically cornering someone, aggressive following

Warning signs: Unexplained bruises, torn clothing, avoidance of campus spaces

Legal note: May constitute criminal assault — document and report; campus policy and criminal law can both apply

Verbal [Bullying & Harassment]

Using words — spoken or written — to intimidate, demean, or control. Often dismissed, but causes serious documented clinical harm.

Identity-based slurs: Name-calling targeting religion, sect, ethnicity, gender, appearance, or accent. When identity-based and repeated, this also constitutes DISCRIMINATION.

Threat & intimidation: 'I'll make your life hell' — a threat constitutes harassment even without follow-through

Reputation attacks: Spreading deliberate lies or damaging rumours within class, hostel, or online group

Sexual comments: Catcalling, sexual jokes, and unwanted comments about body or clothing

Why it matters legally: Verbal abuse is actionable under PPC sections 499/500 (defamation) and PECA Section 20

Types of Bullying & Harassment: Cyberbullying & Online

Online abuse is not 'less serious' because it happened on a screen. These behaviours are CYBERBULLYING when repeated, HARASSMENT when any single act violates dignity, and may be DISCRIMINATION when targeting someone's identity. Keep all evidence — screenshots are your legal proof.

Harassment & Flaming

Repeated hostile or offensive messages sent to provoke distress. Coordinated pile-ons, mass reports, group attacks.

Outing & Doxxing [Harassment / Discrimination]

Publishing private information — home address, phone number, sexuality, medical details — without consent.

Impersonation

Fake accounts posting damaging content as the victim, or contacting the victim's family/teachers under false identity.

Non-Consensual Images

Sharing intimate photos or videos without consent. Criminalised under PECA 2016 Section 21: up to 5 years + Rs. 5M fine.

Cyberstalking

Repeated online tracking, monitoring, following, or threatening via calls/messages. PECA Section 24: up to 3 years.

Public Shaming [Bullying / Harassment / Discrimination]

Posting embarrassing screenshots, degrading videos, or private conversations to humiliate publicly at scale.

Why Cyberbullying Is Uniquely Harmful:

No safe space: Abuse follows the victim home, into their bedroom, 24/7.

Massive audience: Content can reach thousands instantly, amplifying humiliation beyond any campus.

Permanent record: Screenshots exist indefinitely — even deleted content can be screenshotted.

Anonymity emboldens: Fake profiles mean perpetrators feel shielded from any social consequence.

Types: Workplace & Campus Forms of Bullying, Harassment & Discrimination

Each item below is labelled [B] Bullying, [H] Harassment, or [D] Discrimination — or a combination. Many campus situations involve all three simultaneously. The label tells you which definition applies and which law to use.



Campus Context

Ragging & Hazing [B + H]: Forced humiliating acts under the guise of 'tradition' — mandatory in some hostels and societies. Banned under HEC policy.

Academic gatekeeping [H + D]: Using grade threats or approval power to coerce compliance, punish dissent, or favour/discriminate based on identity.

Peer social exclusion [B + D]: Organised ostracism within departments, hostels, or societies based on gender, sect, ethnicity, or socioeconomic class.

Student organisational abuse [B + D]: Abuse of leadership influence — retaliation against members, exclusion from events, or identity-based exclusion from society roles.



Workplace Context

Quid pro quo harassment [H]: Conditioning a benefit — marks, promotion, opportunity — on compliance with sexual or other demands. 'Do this or lose your job.'

Hostile work environment [H + B]: Persistent insults, humiliation, or exclusion creating a degrading atmosphere — regardless of whether physical contact occurs.

Mobbing [B + H]: Colleagues collectively targeting one person with lies, sabotage, and exclusion. A group dynamic that makes individual resistance very difficult.

Constructive dismissal [H + D]: Making the environment so hostile that the victim is effectively forced to resign — treated as dismissal under labour law.

Mental Health: Immediate Psychological & Physical Impacts

Harm is immediate, multi-dimensional, and clinically documented — whether the cause is bullying, harassment, or discrimination. The source differs; the psychological damage is comparable and often worse when identity-based. It is never acceptable to dismiss these as 'overreacting.'

Emotional

- Anxiety, fear, hypervigilance — constant scanning for the next attack
- Depression symptoms: hopelessness, low self-worth, inability to feel pleasure
- Shame and self-blame — believing 'I caused this' or 'I deserve this'
- Anger, emotional dysregulation, outbursts unrelated to the trigger

Physical

- Sleep disturbances: insomnia, nightmares, fear of sleeping
- Appetite changes, headaches, stomach pain, chronic fatigue
- Weakened immune system from sustained cortisol stress response
- Panic attacks — physical crisis triggered by reminders of the abuse

Academic / Work

- Difficulty concentrating, memory problems, declining performance
- Absenteeism: avoiding campus or workplace to escape the perpetrator
- Fear of class participation, public speaking, or being evaluated
- Risk of dropping out — documented in bullying research across Pakistan and globally

Social

- Social withdrawal: pulling away from friends, family, and activities
- Distrust of peers and authority — 'No one helped before, so no one will'
- Reluctance to form new relationships or join groups
- Isolation worsens every other dimension of mental health impact

Mental Health: Long-Term & Systemic Consequences

Impacts do not end when the bullying, harassment, or discrimination stops. Discrimination in particular causes chronic harm because it is tied to identity — the target cannot simply 'move on' when the characteristic being attacked is who they are.

Short-Term (weeks–months)

- Acute stress disorder
- Avoidance of school/work
- Visible behavioural changes
- Social withdrawal begins

Medium-Term (months–years)

- Clinical depression diagnosis
- PTSD symptoms emerge
- Chronic anxiety, social phobia
- Academic/career setbacks

Long-Term (years–decades)

- Diminished life outcomes
- Relationship difficulties
- Risk of substance abuse
- Perpetuating cycles of harm

The long-term mental health burden of bullying extends beyond victims.

Bullies: Without intervention, aggressive behavioral patterns solidify — research links perpetrator behavior to higher rates of antisocial personality traits, substance abuse, and criminal activity in adulthood.

Bystanders: Repeatedly witnessing bullying — even without being targeted — produces its own clinical outcomes: chronic anxiety, learned helplessness, and reduced empathy. This is why a "safe" bystander is not psychologically unaffected.

Protective factors that reduce harm: strong social support · early counselling · institutional responsiveness · clear and enforced anti-bullying policies

The Bystander Effect: Why People Stay Silent

Bystander Effect (Darley & Latané, 1968): People are LESS likely to intervene when others are present. In Darley & Latané's landmark experiments: 85% helped when alone; only 31% helped with 5 bystanders present. The larger the crowd, the more each person believes "someone else will handle it" — so no one acts. In school settings, 85% of bullying happens with witnesses present, yet peers intervene in fewer than 20% of incidents.

Six Psychological Reasons Bystanders Stay Silent:

Diffusion of Responsibility

'Someone else will handle it.' The more witnesses present, the less any single person feels personally obligated to act.

Pluralistic Ignorance

'No one else seems worried, so it can't be serious.' People read others' inaction as a signal that intervention is unnecessary.

Fear of Retaliation

'If I speak up, I'll be the next target.' Especially powerful in social hierarchies with a dominant bully and passive peer group.

Fear of Social Rejection

Challenging a popular person risks being excluded from the group. The social cost of intervening feels too high.

Evaluation Apprehension

'What if I intervene and make it worse, or look stupid?' Fear of being wrong or embarrassing yourself prevents action.

Cultural Norms (South Asia)

In many Pakistani contexts, intervening in "others' matters" is seen as overstepping. Deference to seniority (aadaab), social harmony, and fear of being labelled a "troublemaker" create powerful barriers to speaking up. This must be consciously resisted.

Disrupting Bystander Inaction: The 5D Framework

Bystander intervention directly disrupts the psychological mechanisms that keep witnesses silent. Even one person speaking up breaks the “no one else is reacting” signal that freezes others. Research shows that when one bystander intervenes, others are 3-4x more likely to follow. Based on the Hollaback! bystander intervention model.

The 5 Ds of Active Bystander Intervention:

DIRECT

Speak up calmly and clearly if safe to do so.

Say: 'Hey, that's not okay.' / 'Stop — that's harassment.' / 'Leave them alone.'

When: Only when your safety is not at risk. Do not escalate with aggression.

DISTRACT

Create an interruption without direct confrontation.

Say: Ask victim for directions. Fake a phone call. Drop something loudly. Greet the target as if you know them.

When: When direct confrontation might escalate the situation or risk your own safety.

DELEGATE

Get someone with authority to intervene.

Say: 'There is a situation in [location] that needs your attention right now.'

When: When you cannot act alone — alert a faculty member, security guard, or campus officer.

DOCUMENT

Safely record evidence — never share without the target's consent.

Say: Note date, time, location, exact words. Screenshot messages. Video if safe and legal.

When: Always secondary to ensuring safety. Evidence supports later reporting — not a substitute for action.

DELAY

Check in with the target after the incident if you couldn't act during it.

Say: 'I saw what happened. That wasn't okay. Are you alright? I can support your complaint.'

When: Always possible — after-the-fact witness support significantly aids recovery and formal reporting.

Campus Reporting: FAST NUCES Peshawar Step-by-Step

This is a concrete reporting route based on official FAST NUCES Peshawar campus policy.

1

Secure & Document

Leave the situation. Block online contact if needed. Screenshot all evidence — messages, handles, dates. Write a timeline while memory is fresh: exact words, date, time, location, witnesses.

2

Report via Department

Students: submit a complaint to your Batch Advisor or Head of Department (HoD). They will refer the matter to the Director of Campus. Alternatively, approach the Hostel Warden for peer/hostel cases.

3

Director Refers to GEIAH

The Gender Equity, Inclusion and Anti-Harassment (GEIAH) Committee receives the referral from the Director or you can directly report the incident to a member of the committee. Female privacy route: complaints may also go via female members of the committee.

4

GEIAH Inquiry Process

The Committee conducts a confidential and impartial investigation. Request: (a) confidentiality, (b) interim measures — no shared classes, lab, or hostel floor with the accused during inquiry.

5

If Campus is Unresponsive

Escalate to HEC — all universities are mandated to have functioning committees. Use the HEC Student Grievance Redressal Portal. For cyber cases: report simultaneously to NCCIA (complaint.nccia.gov.pk).

Key principle: Good reporting is factual, timely, and evidence-based. You are NOT required to report before you are ready — but delaying may limit available evidence.

General Reporting Channels & Self-Protection Strategies

Campus processes and external legal channels are not mutually exclusive — you can and should use both simultaneously for serious cases. A fair institutional process must include confidentiality, no retaliation, interim protection, and written follow-up.

External Reporting Channels

NCCIA / FIA Cybercrime

For online harassment, image abuse, doxxing, stalking. Portal: complaint.nccia.gov.pk | complaint.fia.gov.pk | Helpline: 1799

FOSPAH (Federal Ombudsperson)

Harassment complaints under PHWA 2010. Helpline: 03444-367367 | complaints@fospah.gov.pk | Peshawar regional office available.

HEC Grievance Portal

When campus committee is absent, unresponsive, or inadequate. Categories include harassment and discrimination.

Police FIR

For physical assault, stalking, or threats. Emergency: 15 (Police) | 1122 (Rescue Peshawar). Keep evidence before filing.

Self-Protection Strategies

✓ **Document everything first:** Screenshots, export chats, note exact words, dates, times, and names of witnesses before anything is deleted.

✓ **Do NOT delete evidence:** Harassing messages are your proof — preserve them. Only block after documenting.

✓ **Do NOT retaliate online:** Retaliating escalates the conflict and muddies your evidence. Stay factual and calm in all records.

✓ **Secure digital accounts:** Block the perpetrator. Set social media to private. Enable 2FA on all accounts.

✓ **Tell a trusted person:** Share what is happening with a friend, family member, or faculty member you trust — do not carry this alone.

✓ **Access mental health support:** Umang helpline: 0317-4288665 | Rozan Counselling: 051-2890505 | FAST campus counsellor.

Pakistan Legal Framework I: Harassment & Cyber Laws

Pakistan has a significant — if imperfectly enforced — legal framework. You do not need to cite the exact section when reporting: describe the facts. The agency or lawyer will identify the section. But knowing the law strengthens your confidence to report.

PHWA 2010

Protection Against Harassment of Women at the Workplace Act

- Applies to ALL workplaces and educational institutions in Pakistan
- 2022 amendment: protects ALL GENDERS — not just women
- MANDATES a Harassment Inquiry Committee in every org with 10+ employees
- Federal and Provincial Ombudsperson created for oversight and appeals
- Penalties: fines up to Rs. 500,000 and/or imprisonment; dismissal from service
- Covers quid pro quo AND hostile environment harassment

PECA 2016

Prevention of Electronic Crimes Act

- Section 20 — Offences against dignity (false/obscene/defamatory content): 3 years + Rs. 1M
- Section 21 — Non-consensual intimate images: up to 5 years + Rs. 5M fine
- Section 24 — Cyberstalking (repeated contact, monitoring, coercion): 3 years + Rs. 1M
- Section 24A — Cyberbullying added in the amended compiled text
- Enforcement body: FIA's National Response Centre for Cyber Crime (NR3C)
- 2023 Amendment: added cyberbullying provisions, child protection clauses, and stricter platform accountability requirements

Pakistan Penal Code (PPC) — Also Applicable:

Section 354: Assault on a woman to outrage modesty — severely penalised. **Section 509:** Words/gestures to insult modesty of a woman — up to 3 years. **Sections 499/500:** Defamation — applicable to deliberate rumour campaigns online and offline.

Pakistan Legal Framework II: HEC Policy, Constitution & International Law

Campus protection in Pakistan operates through a LAYERED SYSTEM — not one single office. Institutional policy + HEC regulation + workplace-harassment law + ombudsperson + cybercrime law may all intersect in a single case.

HEC Anti-Harassment Policy 2025

- Revised policy notified in 2025 — binding on all public and private universities
- Covers: prohibited conduct, inquiry committees, interim protection, appeals, and anti-retaliation
- ALL universities must have a Campus Harassment Inquiry Committee (CHIC)
- HEC Grievance Redressal Portal for students when campus channels fail
- HEC can apply funding consequences for non-compliant institutions

Constitution of Pakistan

- Article 25: All citizens are equal; discrimination on basis of sex prohibited
- Article 26: No discrimination in public spaces based on religion, race, caste, or place of birth
- Article 27: No discrimination in service based on religion, race, caste, sex, or place of birth
- Article 28: Protection of language, script, and culture — basis for ethnic identity protection
- Article 20: Freedom of religion — forms a basis for religion-based discrimination protection

International Frameworks

- CEDAW (Convention on Elimination of Discrimination Against Women) — Pakistan is signatory
- CRC (Convention on Rights of the Child) — protects minors from all forms of abuse
- ILO Convention 190 on Violence and Harassment in the World of Work
- Transgender Persons (Protection of Rights) Act 2018 — landmark national legislation
- CRPD (Convention on Rights of Persons with Disabilities) — Pakistan signatory

Best exam answer: describe the LAYERED system — campus policy → HEC → PHWA → PPC → PECA → Constitution, depending on the nature and severity of the case.

KEY TAKEAWAYS

Bullying, Harassment & Discrimination

1. Name it correctly

Bullying = repeated + power imbalance + intent. Harassment = unwanted conduct (one incident suffices). Discrimination = unfair treatment linked to a protected characteristic.

2. Recognise all forms

Physical, verbal, cyber, and institutional forms each apply to bullying and harassment. Discrimination runs through all of them — it is the added layer when the abuse targets a protected characteristic (religion, gender, ethnicity, disability). Look for the [D] label.

3. Harm is real

Clinical depression, PTSD, academic failure, social isolation are documented outcomes. 'It was just words' or 'it was just a joke' are never acceptable dismissals.

4. Silence enables abuse

The 5 Ds (Direct, Distract, Delegate, Document, Delay) give every bystander a safe and practical toolkit. Inaction is not neutral — it tells perpetrators the behaviour is acceptable.

5. Know how to report

FAST NUCES: HoD → Director → GEIAH. Externally: NCCIA (1799), FOSPAH (03444-367367), HEC Grievance Portal. Document first. You can use campus and external channels simultaneously.

6. The law is on your side

PHWA 2010, PECA 2016, PPC sections 354/509/499, HEC 2025 Policy, and Constitution Articles 25–28 all provide protections. Enforcement is imperfect — but the legal framework exists.